

The Protect College Sports Act of 2026: Potential Implications for Title IX

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Calls from stakeholders for federal legislation regulating intercollegiate athletics have increased during a period of significant change in intercollegiate sports. Intercollegiate athletics regulators have faced uncertainty with respect to the enforcement of uniform rules on issues such as compensation for the use of an athlete's Name, Image, and Likeness (NIL); eligibility; and transfers between institutions, due in part to years of litigation. One legislative proposal, the Protect College Sports Act (PCSA), has been characterized as a bipartisan solution to “end the disorder facing college athletics” stemming from a “conflicting patchwork of court decisions and state laws.”

The revised Senate version of the PCSA addresses a wide range of issues related to intercollegiate athletics, including several provisions that explicitly address women's sports. Some observers have raised questions about how the bill's provisions, if enacted, would ultimately interact with existing requirements for university athletics programs under Title IX of the Education Amendments of 1972 (Title IX). Title IX prohibits discrimination on the basis of sex in education programs and activities that receive federal financial assistance. Among other things, the statute imposes significant requirements for university athletics programs with respect to the allocation of resources between the sexes. The PCSA does not directly amend Title IX, but it includes a Title IX “savings clause” that would clarify that nothing in the PCSA shall be construed to “override, modify, or amend the applicability of Title IX.”

This Sidebar begins with a brief background on Title IX's requirements for athletics programs. It continues by describing the PCSA and its provisions most relevant to university Title IX obligations. The Sidebar then examines how those provisions, if enacted, might interact with Title IX's requirements for athletics. It concludes with some considerations for Congress.

Title IX and Athletics

Title IX of the Education Amendments of 1972 (Title IX) prohibits discrimination on the basis of sex in education programs and activities that receive federal financial assistance. The law is generally enforced in two ways: (1) through private lawsuits brought directly against recipients in federal court, and (2) by federal agencies that distribute funding to recipients. Although the statute does not mention athletics,

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long-standing [regulations](#) implementing Title IX provide that recipient schools' athletics programs may offer separate teams for men and women but must ensure overall equal athletic opportunities for both.

While schools must provide equal athletic opportunities to members of both sexes, they do not [necessarily need to offer](#) the same sports for each sex. Likewise, Title IX does not [require](#) equal aggregate expenditures for men's and women's athletics programs. Instead, whether a university's athletics program complies with Title IX can [turn](#) on fact-specific [inquiries](#) into how the institution has deployed its resources for each sex. Drawing on Title IX's athletics regulations, a [Policy Interpretation](#) from 1979 (issued by the predecessor agency to ED, the Department of Health, Education, and Welfare) lays out three basic categories of Title IX obligations for schools' athletics programs and activities: (1) equivalent benefits and opportunities; (2) effective accommodation of interest and abilities; and (3) proportional financial assistance (i.e., scholarships).

Equivalent Benefits and Opportunities

Title IX regulations require recipients that operate athletics programs to [provide](#) "equal athletic opportunity for members of both sexes." In determining whether this standard is met, a range of factors are relevant, including equipment and supplies; scheduling; travel expenses; coaching and tutoring, including compensation thereof; practice and competitive facilities; medical and training facilities and services; and publicity, as well as recruitment and support services. Institutions must provide [equivalent](#) treatment, benefits, and services for women's and men's teams overall. Equality of opportunity is not [measured](#) through a [sport-specific comparison](#). Instead, schools have [flexibility](#) in distributing athletics resources.

Effective Accommodation of Interests and Abilities

Title IX regulations also [require](#) schools that offer athletics programs to "effectively accommodate the interests and abilities of members of both sexes." Whether an institution has done so is assessed by using a [three-part test](#). Under this test, an institution is in [compliance](#) with the effective accommodation requirement if: (1) "Intercollegiate level participation opportunities for male and female students are provided in numbers substantially proportionate to their respective enrollments"; or (2) "[T]he institution can show a history and continuing practice of program expansion" responsive to the interests of an underrepresented sex; or (3) The institution is "fully and effectively" accommodating the interests and abilities of an underrepresented sex. Recipient schools need to meet [only one of the prongs](#) to comply with the effective accommodation requirement.

Proportional Scholarships

When colleges and universities award "athletics scholarships or grants-in-aid," they [must offer](#) reasonable opportunities for awards for members of each sex in proportion to the number of students participating in intercollegiate athletics. This obligation does not mean the dollar amount of scholarships for men and women must be perfectly equal. Instead, total assistance awarded to each sex must be [substantially proportionate](#) to the participation rates of men and women.

Protect College Sports Act of 2026

Over the past decade, a [series of antitrust lawsuits](#) has challenged amateurism rules set in place by the main governing body of intercollegiate athletics, the National Collegiate Athletic Association (NCAA). These lawsuits, and the enactment of various state laws, have also posed a challenge to the NCAA's ability to uniformly regulate intercollegiate athletics. As a result, [some stakeholders have called for](#)

congressional action on the issue. Members of Congress have [introduced](#) a number of intercollegiate sports reform proposals over the last five years. The PCSA is the latest proposal that seeks to implement reform in [a stated attempt to](#) “restore stability to college sports.”

Relevant History of College Athletics Regulation

The NCAA—a private, nonprofit organization composed of [nearly 1,100 member institutions](#)—sets standards [governing](#) intercollegiate athletics. Since its inception, the NCAA has [promoted amateurism](#) in intercollegiate athletics and has [enforced rules](#) on matters such as athlete eligibility, financial aid, and compensation, including rules that limited athletes’ ability to earn money for the use of their NIL.

In the late 2000s, the NCAA’s athlete compensation rules became the focus of several lawsuits brought under Section 1 of the Sherman Antitrust Act (Sherman Act), which [generally prohibits](#) unreasonable restraints of trade. The details of these lawsuits are discussed in an earlier [Legal Sidebar](#). According to [some commentators](#), at least one of these cases [may have contributed](#) to the NCAA’s [2021 decision](#) to suspend some of its rules that prohibited athletes from earning NIL compensation.

Since the NCAA relaxed its NIL prohibitions, it is estimated that intercollegiate athletes have collectively [earned millions](#) of dollars in NIL deals while intercollegiate athletics has entered a period [some commentators](#) and [Members of Congress](#) have referred to as the “wild west.” For one thing, the NCAA has [struggled](#) to create any national standard for NIL regulation due to a patchwork of state laws. For example, [several states](#) have passed laws that [prohibit](#) NCAA enforcement actions regarding NIL activities, [with one](#) forbidding the NCAA from “[penaliz\[ing\] a student\[-\]athlete](#)” for receiving NIL compensation. The NCAA has also continued to face antitrust challenges to its existing rules that have limited its ability to enforce standards on issues such as NIL compensation and athlete transfers. For instance, one [federal district court](#) enjoined the NCAA from enforcing rules that prohibit institutional boosters from engaging in recruiting activities on behalf of a school, including promising any NIL compensation to an athlete in exchange for the athlete’s enrollment at a particular school. The court found this “[NIL-recruiting ban](#)” likely violated the Sherman Act. Another [federal district court](#) held that NCAA transfer eligibility rules (rules that restrict an athlete’s eligibility to compete after transferring institutions) also likely violated the Sherman Act. Athletes have challenged [the NCAA’s eligibility rules](#) as well, including through [lawsuits](#) brought by athletes seeking another year of eligibility after the NCAA’s [June 2026 rule change](#) that would limit eligibility to five years.

In Re College Athlete NIL Litigation

While several antitrust cases have helped shape the current landscape, two class action cases filed in 2020—*House v. NCAA* and *Oliver v. NCAA*, consolidated as *In re College Athlete NIL Litigation*—contributed to one of the most significant shifts in intercollegiate athletics. On June 6, 2025, a federal district court approved a settlement that resolved *In re College Athlete NIL Litigation* and two other related cases. The settlement, commonly referred to as the *House* settlement, included nearly [\\$2.8 billion in damages](#) and injunctive relief that led to [fundamental change in intercollegiate athletics](#). The details of the settlement are summarized in another [Legal Sidebar](#), but three provisions in the injunctive relief portion are relevant to the discussion regarding the PCSA.

First, the injunctive relief settlement provided that the defendants—the NCAA and the “[Power Five](#)” athletic [conferences](#)—would agree to allow institutions to share a portion of athletic revenue with athletes. Revenue sharing is distinct from third-party NIL agreements in that the compensation is paid directly by the institution. Per the settlement, each institution is permitted, but not required, to distribute athletic revenue to athletes up to a cap of 22 percent of the “[average shared revenue](#)” generated by Power Five member institutions. For the 2026-2027 academic year, institutions are able to distribute [\\$21.58 million](#) (which does not include grant-in-aid) amongst their athletes, and this figure is to be re-evaluated,

and may increase, throughout the settlement term. Each institution may decide how to distribute the revenue amongst its athletes, and [some reports](#) suggest that revenue sharing is primarily being paid to athletes in revenue-generating programs like football and men's basketball.

Second, the NCAA agreed in the settlement to [eliminate rules](#) limiting the number of scholarships each institution may award its athletes. Instead, the NCAA is allowed to impose caps on the number of athletes allowed to compete on each team. Institutions are now able to offer scholarships up to the number of athletes that are allowed on each team under the new roster caps. This change may reduce the total number of athletes at each institution but allows universities to offer athletic scholarships to all varsity athletes.

Third, while the NCAA and conferences are prohibited by the settlement from having rules that prevent athletes from receiving NIL compensation from third parties, they [may continue to have](#) rules designed to ensure that NIL deals are for a "[valid business purpose related to the promotion or endorsement of goods or services](#)" and are not payments to athletes in return for their enrollment at an institution.

Relevant PCSA Provisions

The [most recent version](#) of the PCSA tackles a wide-ranging set of issues facing intercollegiate athletics that have emerged, in part, through the series of antitrust lawsuits challenging existing NCAA rules. Several provisions relate directly to issues that have been the subject of NCAA antitrust lawsuits, including the proposed codification of [various features](#) of the *House* settlement. Below is a brief, non-comprehensive description of some of the provisions of the PCSA that are relevant for purposes of this Legal Sidebar.

NIL Framework and Revenue Sharing

The PCSA [would recognize](#) an intercollegiate athlete's right to earn NIL compensation by prohibiting institutions, conferences, and intercollegiate athletic associations (such as the NCAA) from restricting the ability of an athlete to market and earn such compensation (with some narrow exceptions). The bill also contains [a provision](#) explicitly stating that institutions, intercollegiate athletic associations, athletic conferences, third parties, and institutional boosters (referred to as "collectives" and "associated entities") would be allowed to "pay, provide, or facilitate compensation" to an athlete for the use of his or her NIL.

The PCSA would also [codify](#) the institutional revenue-sharing cap from the *House* settlement and would allow institutions to exceed the cap by up to \$22.5 million for the purpose of [retaining athletes](#) who have spent at least one full season at the institution, so long as the institution meets uniform benchmarks related to graduation rates and academic progress of athletes. The PCSA [would allow](#) institutions to further exceed the revenue-sharing cap by up to an additional \$5 million per year in proportion to the amount the institution provides to athletes competing in "non-revenue generating intercollegiate sports programs, including women's and Olympic intercollegiate sports programs." This \$27.5 million an institution could spend would be in addition to the annual revenue-sharing allowance provided for in the *House* settlement, which [is to be re-evaluated](#) and is expected to increase throughout the duration of the 10-year settlement period.

Women's and Olympic Sports

Various sections of the PCSA address stated concerns regarding reductions in women's and Olympic collegiate sports programs that have emerged [likely because](#) of increased costs due to [revenue sharing](#) and the *House* settlement's [imposition of roster caps](#). For example, [Section 125](#) would generally require intercollegiate athletic associations, conferences, and institutions to maintain certain levels for women's and Olympic sports programs. The PCSA would prohibit intercollegiate athletic associations and

conferences comprised of NCAA [Division I](#) institutions (the schools that have the [largest athletic budgets](#)) from reducing the minimum competitions, minimum participants on a varsity sports team, or the number of varsity sports teams that an institution must sponsor. Section 125 would also prohibit an intercollegiate athletic association or conference from reducing the minimum number of competitions, participants on varsity sports teams, or number of varsity sports teams (including men's and women's teams or Olympic sports teams) that an institution must sponsor for membership in Division I or the [Football Bowl Subdivision](#) (which consists of the [Division I athletic programs](#) with "the highest-profile football competition in college athletics"). The provision would also require "large-sized" and "mid-sized" institutions to maintain as many scholarship and roster spots for non-revenue generating sports (including women's and Olympic sports programs) during each year as the institution provided during the 2024-2025 academic year, with opportunities for "large-sized" institutions to seek waivers and for "mid-sized" institutions to be exempt from the requirement. The provision would sunset after nine years for "large-sized" institutions and four years for "mid-sized" institutions. Also, as mentioned above, the PCSA [would allow](#) institutions to exceed the revenue-sharing cap by up to an additional \$5 million per year in proportion to the amount the institution provides to athletes competing in non-revenue generating sports, including women's and Olympic sports programs.

A [different section of the PCSA](#) would require that intercollegiate athletic associations and conferences maintain "comparable standards" for medical care, lodging, meals, rest, transportation, publicity, promotion, and, if applicable, athletic facilities for championship events, "across similarly situated men's and women's athletic programs."

PCSA and Implications for Title IX

Revenue Sharing

As mentioned above, the PCSA would [establish](#) a statutory revenue-sharing cap under which institutions may provide compensation to their student-athletes. Because the NCAA prohibited such university compensation to student-athletes until quite recently, Title IX's application to revenue-sharing payments presents relatively novel legal questions.

An initial question might be whether such payments would be considered "scholarships" that, pursuant to Title IX regulations discussed above, must be distributed in [proportion](#) to the numbers of students of each sex participating in intercollegiate athletics. An argument that revenue-sharing compensation is akin to scholarships might point to a position taken by OCR at the end of the Biden Administration with respect to institutional NIL deals. In a now-rescinded guidance document, OCR [argued](#) that compensation provided directly to students by schools for NIL use is "athletic financial assistance under Title IX" that must be distributed in accordance with Title IX's [requirement](#) for proportionally allocated scholarships. According to OCR's [document](#), "athletic financial assistance" is not limited to scholarships or grants and covers all "financial assistance and other aid provided by the school to a student-athlete that is connected to a student's athletic participation," including, but not limited to, compensation allowed by federal court injunction and from institutional agreements to use a student athlete's NIL.

Conversely, it might be argued that revenue-sharing compensation is distinguishable from the "scholarships" and "grants-in-aid" covered by Title IX's [proportionality](#) requirement. While scholarships lower the cost of attendance for an intercollegiate athlete that an institution wishes to enroll, revenue-sharing compensation is more akin to a [contractual agreement](#) between student-athletes and universities. The second Trump Administration, for instance, revoked the Biden-era OCR guidance document shortly after taking office and explicitly [disclaimed](#) the conclusion that payments via institutional NIL agreements must be distributed proportionally. In the context of the PCSA, the bill would [distinguish](#) between "scholarships" (including "grants-in-aid"), which do not count against the revenue-sharing cap, and

“compensation” regulated and capped by the bill’s terms. In addition, the PCSA would [allow](#) for an extra \$5 million for an institution’s retention fund if provided to student-athletes in non-revenue generating sports, including women’s and Olympics sports. The addition of this extra amount of available compensation for women’s sports on top of the retention fund amounts arguably suggests that revenue sharing would not be required to be distributed proportionally between men and women.

Another question is whether revenue-sharing payments and the opportunity to receive institutional NIL deals might be considered akin to things like facilities, coaching compensation, equipment, and publicity, that should be considered in assessing whether a university is offering equivalent [benefits and opportunities](#) to men and women under Title IX. If so, whether a particular university would be treating the sexes equally in its athletic programs were the PCSA to become law might depend on a fact-specific inquiry into how it distributes resources overall, including things like opportunities to receive institutional NIL deals. Some support for this position may be found in one of the only [cases](#) to address the relevance of NIL payments in a Title IX challenge to a university’s athletics program. There, a district court denied a university’s motion to dismiss a lawsuit alleging unequal treatment, rejecting the argument that NIL opportunities provided by third parties were irrelevant in a Title IX challenge. The court reasoned that the female plaintiffs did not challenge third-party contracts themselves, but instead alleged that the university discriminated against them by providing less NIL-connected training, income, and opportunity than they did for male athletes. Those effects were relevant to their claim for unequal treatment in violation of Title IX, in the court’s view. Likewise, OCR’s now-rescinded [guidance document](#) from the Biden Administration argued that a university’s obligation to offer equivalent publicity and support services to the sexes applies in the NIL context. While the second Trump Administration rescinded the document with the objections mentioned above, it did not [express](#) disagreement with these points.

Prohibition on Reducing Non-Revenue Generating Sports

Another consideration might be how the PCSA’s specific provisions regarding women’s roster spots would interact with Title IX’s requirements. Section 125 of the PCSA [would require](#) that large- and mid-sized institutions maintain at least as many total roster sports and grant-in-aid opportunities for “non-revenue generating intercollegiate sports programs, including women’s and Olympic” programs as it had during the 2024-2025 academic year. Waivers would be available for various reasons. As a threshold matter, and as mentioned above, the PCSA contains a provision specifying that it would not [modify](#) the application of Title IX’s requirements to institutions. Thus, an institution’s compliance with the PCSA’s requirement “floor” may not necessarily indicate compliance with Title IX’s independent requirements one way or another.

Further, Section 125’s language [regarding](#) reducing the “total” roster spots and grant-in-aid opportunities for “non-revenue generating intercollegiate sports programs, including women’s and Olympic” programs, could be read to mean that institutions must only maintain “total” amounts for non-revenue generating programs generally, irrespective of whether they reduce women’s programs or Olympic programs.

More broadly, the interaction between Section 125’s requirements for roster spots and Title IX would likely depend on the specific factual circumstances of a university’s athletics program. Under Title IX, the number of roster spots available is a [common](#) consideration when schools aim to [establish](#) prong one of the three-part test for the effective accommodation requirement, which requires [substantial](#) proportionality of participation rates between the sexes. Thus, a school might argue that complying with the PCSA’s “floor” by not eliminating roster spots in women’s sports is evidence that it has satisfied the first prong. However, whether doing so establishes substantial proportionality under Title IX would likely turn on additional fact-specific questions beyond consideration of the number of women’s roster spots in isolation, such as potential student population changes and the number of participation opportunities available for men. Further, a school can show [effective accommodation](#) of student interest and ability by

meeting prong two or three of the test, which might not concern compliance with the PCSA's roster spot "floor" at all.

Likewise, the PCSA's "floor" for grants-in-aid opportunities for non-revenue generating sports could have implications for an institution's compliance with Title IX's requirements for proportional scholarships, which may turn on the specific factual circumstances of each university's athletics program, such as the relative proportion of men's and women's athletic participation rates.

Considerations for Congress

In considering its response to recent developments in intercollegiate sports, Congress has several options. One might be to allow the various legal disputes and negotiations to proceed without congressional intervention. Another course would be for Congress to pass the PCSA or related legislation, such as the SCORE Act. Congress could also amend the PCSA with additional specifications as to how its provisions should interact with Title IX's requirements. For example, Congress could provide that revenue-sharing compensation must be distributed proportionally between the sexes in accordance with Title IX's requirement for scholarships. Alternatively, Congress could make explicit that such compensation is not considered a scholarship under Title IX, but should be considered as a relevant benefit and opportunity that must be offered equivalently. Separately, Congress could specify how and whether compliance with the "floor" for non-revenue generating roster spots and grant-in-aid opportunities should interact with Title IX's requirements.

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